

Advisory Notice to Policyholders
Supplemental Spousal Liability Coverage – New York

Insured's Name: THE NIGHT STONE MASON INC

Policy Number: CAPI068871

Policy Effective Date: 10-09-2024

New York State law requires that upon written request of an insured, and upon payment of the premium, an insurer issuing or delivering a policy that satisfies the requirements of Article 6 of the New York Vehicle and Traffic Law shall provide Supplemental Spousal Liability Insurance coverage.

Supplemental spousal liability insurance provides bodily injury liability coverage under a motor vehicle insurance policy to cover the liability of an insured spouse because of the death of or injury to his or her spouse, even where the injured spouse must prove the culpable conduct of the insured spouse.

This coverage is included within the policy's bodily injury liability limits and does not increase the amount of those limits. For example:

Insured's bodily injury policy coverage limit: \$100,000/\$300,000 Insured's
bodily injury damage claim paid to spouse: \$75,000

Insured's bodily injury policy coverage limit available to all other claimants subject to a maximum
of \$100,000 per person: \$225,000

This example assumes the spouse and other claimants involved in the accident have a right to sue the insured for economic loss or for non-economic loss (i.e., pain and suffering) sustained as a result of a "serious injury" as defined in Section 5102 (d) of the Insurance Law. It must also have been shown that there was negligence on the part of the insured.

If you elect to add SSL Coverage as of today's date, the additional premium for SSL coverage is \$100.00. If you do not elect to purchase this coverage and do not remit the additional premium, SSL coverage is not included in your motor vehicle insurance policy.

THIS NOTICE DOES NOT PROVIDE COVERAGE NOR DOES THIS NOTICE REPLACE ANY PROVISIONS OF YOUR POLICY. YOU SHOULD READ YOUR POLICY AND REVIEW YOUR DECLARATIONS PAGE FOR COMPLETE INFORMATION ON THE COVERAGES YOU ARE PROVIDED WITH. IF THERE IS ANY CONFLICT BETWEEN THE POLICY AND THIS NOTICE, THE PROVISIONS OF THE POLICY SHALL PREVAIL.

RENEWAL

DATE PREPARED: 09/06/24

FS-20(9/76)

NEW YORK STATE INSURANCE IDENTIFICATION CARD

204 MERCHANTS MUTUAL INSURANCE CO.

CAPI068871

Name & Address of Insurer

Policy Number

MERCHANTS INSURANCE GROUP
250 MAIN STREET BUFFALO, NY 1420210/09/202410/09/2025

Effective Date

Expiration Date

12:01 a.m.

12:01 a.m.

An authorized NEW YORK insurer has issued an
Owner's Policy of Liability Insurance complying with
Article 6 (Motor Vehicle Financial Security Act) of the
NEW YORK Vehicle and Traffic Law to:

(Not acceptable to obtain registration after 45 days
from effective date.)

Applicable with respect to the following Motor Vehicle:

THE;NIGHT;STONE
MASON;INC
4523 STATE ROUTE 9
WARRENSBURG,NY 128854711

1997PARK

Year

Make

13ZRP1622V1007772

Vehicle Identification Number



SEE IMPORTANT MESSAGE ON REVERSE SIDE

MU-0781 (07/01)

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The name of the registrant and the name of the insured must coincide.

REPLACEMENT VEHICLE NOTATION: DMV WILL ONLY PROCESS A VEHICLE CHANGE (RE-REGISTRATION) USING THE REPLACED VEHICLE'S CURRENT REGISTRATION.

FAX: Scanable Bar Code

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2011

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1FDRF3H63BEA66124

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2019

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1FT7X2B64KEE07977

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Policy Number

**MERCHANTS INSURANCE GROUP
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MASON;INC
4523 STATE ROUTE 9
WARRENSBURG,NY 128854711

2008FORD

Year

Make

1FTSX31Y88EB42119

Vehicle Identification Number



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Owner's Policy of Liability Insurance complying with
Article 6 (Motor Vehicle Financial Security Act) of the
NEW YORK Vehicle and Traffic Law to:

(Not acceptable to obtain registration after 45 days
from effective date.)

Applicable with respect to the following Motor Vehicle:

THE;NIGHT;STONE
MASON;INC
4523 STATE ROUTE 9
WARRENSBURG,NY 128854711

2003

HOME

Year

Make

5HABV08163N029280

Vehicle Identification Number



SEE IMPORTANT MESSAGE ON REVERSE SIDE

MU-0781 (07/01)

THIS ID CARD MUST BE CARRIED IN THE INSURED VEHICLE FOR PRODUCTION UPON DEMAND

WARNING: Any person who issues or produces an ID card knowing that an Owner's Policy of insurance is not in effect may be committing a misdemeanor. In addition, a person who presents an ID card if insurance is not in effect may be committing a misdemeanor.

The name of the registrant and the name of the insured must coincide.

REPLACEMENT VEHICLE NOTATION: DMV WILL ONLY PROCESS A VEHICLE CHANGE (RE-REGISTRATION) USING THE REPLACED VEHICLE'S CURRENT REGISTRATION.

FAX: Scanable Bar Code

FAX INSTRUCTIONS:

1. The entire page must be faxed.
2. If submitted to DMV, either the entire page or the second card and large bar code will be retained.
3. A faxed ID Card must be replaced with a scanable ID Card within 14 days of the effective date.
4. DMV will not accept a faxed ID card without a scanable barcode.



Automobile ID Card(s) Form Number MU-0781 (07/01)

THIS ID CARD MUST BE CARRIED IN THE INSURED VEHICLE FOR PRODUCTION
UPON DEMAND

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The name of the registrant and the name of the insured must coincide.

REPLACEMENT VEHICLE NOTATION: DMV WILL ONLY PROCESS A VEHICLE CHANGE (RE-REGISTRATION) USING THE REPLACED VEHICLE'S CURRENT REGISTRATION.



**COMMERCIAL LINES POLICY
COMMON POLICY DECLARATIONS**

Date Prepared: 09/06/2024

**MERCHANTS MUTUAL INSURANCE COMPANY
Buffalo, New York**

Policy Number: CAPI068871

Transaction Type: Renewal Certificate

Previous Policy Number: CAPI068871

LIST BILL

Named Insured and Mailing Address:

Your Agent: 85336/WSBC9/005

**THE NIGHT STONE MASON INC
4523 STATE ROUTE 9
WARRENSBURG, NY 12885-4711**

**MARSHALL & STERLING UPSTATE
25 MOHAWK AVENUE
SCOTIA, NY 12302
(518)384-1100**

(If applicable, see last page of declarations for complete Named Insured)

Policy Period: From **10/09/2024** to **10/09/2025** at 12:01 a.m. Standard Time at your mailing address shown above.

Form of Business: CORPORATION

Business Description: MASON

IN RETURN FOR THE PAYMENT OF THE PREMIUM, AND SUBJECT TO ALL THE TERMS OF THIS POLICY, WE AGREE WITH YOU TO PROVIDE THE INSURANCE AS STATED IN THIS POLICY.

THIS POLICY CONSISTS OF THE FOLLOWING COVERAGE PARTS FOR WHICH A PREMIUM IS INDICATED. THIS PREMIUM MAY BE SUBJECT TO ADJUSTMENT.

COMMERCIAL PROPERTY COVERAGE PART	\$	
COMMERCIAL GENERAL LIABILITY COVERAGE PART	\$	
COMMERCIAL CRIME COVERAGE PART	\$	
COMMERCIAL INLAND MARINE COVERAGE PART	\$	
BUSINESS AUTO COVERAGE PART	\$	3,925.00
TOTAL POLICY PREMIUM:	\$	3,925.00

FORMS AND ENDORSEMENTS ATTACHED AT INCEPTION APPLYING TO THIS COVERAGE PART AND MADE PART OF THIS POLICY AT TIME OF ISSUE

Authorized Representative:

MU 7653 (0717)

THESE DECLARATIONS TOGETHER WITH THE COMMON POLICY CONDITIONS, COVERAGE PART DECLARATIONS, COVERAGE PART FORM(S) AND FORMS AND ENDORSEMENTS, IF ANY, ISSUED TO FORM A PART THEREOF, COMPLETE THE ABOVE NUMBERED POLICY.

Insured Copy



COMMERCIAL LINES POLICY
COMMERCIAL AUTOMOBILE COVERAGE PART DECLARATIONS
MERCHANTS MUTUAL INSURANCE COMPANY

Buffalo, New York

Named Insured: THE NIGHT STONE MASON INC

Policy Number: CAPI068871

Policy Period: 10/09/2024 to 10/09/2025

ITEM TWO - SCHEDULE OF COVERAGES & COVERED AUTOS

This policy provides only those coverages where a charge is shown in the premium column below. Each of these coverages will apply only to those 'autos'. 'Autos' are shown as covered 'autos' for a particular coverage by the entry of one or more of the symbols from the 'Covered Autos' section of the Business Auto Coverage Form next to the name of the coverage.

COVERAGES	SYMBOLS	LIMITS	PREMIUM
LIABILITY	01	\$1,000,000	\$ 2,286.00
PERSONAL INJURY PROTECTION ** (OR EQUIVALENT NO FAULT COVERAGE)	07	SEE SCHED. OF AUTOS-MU7251	\$ 126.00
ADDITIONAL PIP ** (OR EQUIVALENT ADDED NO FAULT COVERAGE)	07	SEE SCHED. OF AUTOS- MU7251	\$ Included
OPTIONAL BASIC ECONOMIC LOSS COVERAGE **	07	SEE SCHED. OF AUTOS- MU7251	\$ Included
AGGREGATE NO FAULT BENEFITS AVAILABLE	07	\$ 125,000	\$ Included
AUTO MEDICAL PAYMENTS	07	\$ 5,000	\$ 7.00
SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS (SUM) *	07	\$1,000,000 BI	\$ 99.00
PHYSICAL DAMAGE			
COMPREHENSIVE COVERAGE	07	SEE SCHED. OF AUTOS-MU7251	\$ 514.00
COLLISION COVERAGE	07	SEE SCHED. OF AUTOS-MU7251	\$ 713.00
OPTIONAL COVERAGES AND ENDORSEMENTS			\$ 150.00
NEW YORK MOTOR VEHICLE LAW ENFORCEMENT FEE			\$ 30.00
ESTIMATED TOTAL PREMIUM			\$ 3,925.00

SUBJECT TO AUDIT: NO

* The maximum amount payable under **SUM** coverage shall be the policy's **SUM** limits reduced and thus offset by motor vehicle bodily injury liability insurance policy or bond payments received from, or on behalf of, any negligent party involved in the accident, as specified in the **SUM** endorsement.

** See MU7251 regarding Maximum Monthly Work Loss, Other Necessary Expenses (per day) and Death Benefit.

ITEM THREE - SCHEDULE OF COVERED AUTOS YOU OWN

SEE SCHEDULE OF AUTOS AND RELATED COVERAGES/DISCOUNTS - MU 72 51

ITEM FOUR - SCHEDULE OF HIRED OR BORROWED COVERED AUTO COVERAGE AND PREMIUMS

LIABILITY COVERAGE - COST OF HIRE RATING BASIS FOR AUTOS NOT USED IN YOUR MOTOR CARRIER OPERATIONS (OTHER THAN MOBILE OR FARM EQUIPMENT)

STATE	LIABILITY COVERAGE	ESTIMATED ANNUAL COST OF HIRE	PREMIUM
NY	Excess Coverage	If Any	\$ 40.00
Total Premium			\$ 40.00



COMMERCIAL LINES POLICY
COMMERCIAL AUTOMOBILE COVERAGE PART DECLARATIONS
MERCHANTS MUTUAL INSURANCE COMPANY

Buffalo, New York

Named Insured: THE NIGHT STONE MASON INC

Policy Number: CAPI068871

Policy Period: 10/09/2024 to 10/09/2025

For 'autos' NOT used in your motor carrier operations, cost of hire means the total amount you incur for the hire of 'autos' you don't own (not including 'autos' you borrow or rent from your partners or 'employees' or their family members). Cost of hire does not include charges for services performed by motor carriers of property or passengers.

HIRED AUTO PHYSICAL DAMAGE COVERAGE - NOT COVERED

ITEM FIVE - SCHEDULE FOR NON-OWNERSHIP LIABILITY

STATE - NY

NAMED INSURED'S BUSINESS	RATING BASIS	NUMBER		PREMIUM
Other Than Garage Service Operations And Other Than Social Service Agencies	Number of Employees (Active and Inactive)	3	\$	267.00
Total Premium			\$	267.00

ITEM SIX - SCHEDULE FOR GROSS RECEIPTS OR MILEAGE BASIS - NOT COVERED

DRIVERS LIST

Name	DOB	License Number	License State
JOSE D HERNANDEZ	07/05/1966	3708	NY

OPTIONAL COVERAGES AND ENDORSEMENTS

COMMERCIAL AUTOMOBILE BROAD FORM ENDORSEMENT - MU 83 89 PREMIUM \$ 150.00

LOSS PAYEE(s)

GLENS FALLS NATIONAL
250 GLEN ST
GLENS FALLS,NY 12801
Applicable to Auto 005

FORMS AND ENDORSEMENTS ATTACHED AT INCEPTION APPLYING TO THIS COVERAGE PART AND MADE PART OF THIS POLICY AT TIME OF ISSUE.

CA0001	(1013)	BUSINESS AUTO COVERAGE FORM
CA0112	(0622)	NEW YORK CHANGES IN BUSINESS AUTO/TRUCKERS COVERAGE FORM
* CA0112	(1215)	NEW YORK CHANGES IN BUSINESS AUTO/TRUCKERS COVERAGE FORM
CA0175	(0187)	QUICK REFERENCE COMML AUTO COV PART BUS AUTO COV FORM
CA0225	(0620)	NEW YORK CHANGES - CANCELLATION
CA0514	(1118)	NEW YORK TRANSPORTATION NETWORK SERVICES EXCLUSION
CA2232	(1118)	NEW YORK MANDATORY PERSONAL INJURY PROTECTION ENDORSEMENT
CA2233	(1118)	ADDITIONAL PERSONAL INJURY PROTECTION (NEW YORK)
CA2260	(0492)	NEW YORK OPTIONAL BASIC ECONOMIC LOSS COVERAGE
CA3107	(1118)	NEW YORK SUPPLEMENTARY UNINSURED/UNDERINSURED MORORISTS END
CA9903	(1013)	AUTO MEDICAL PAYMENTS COVERAGE

MU 72 50 06 98



COMMERCIAL LINES POLICY
COMMERCIAL AUTOMOBILE COVERAGE PART DECLARATIONS
MERCHANTS MUTUAL INSURANCE COMPANY

Buffalo, New York

Named Insured: THE NIGHT STONE MASON INC

Policy Number: CAPI068871

Policy Period: 10/09/2024 to 10/09/2025

CA9931	(0698)	FULL COVERAGE WINDOW GLASS(NY)
CA9944	(1013)	LOSS PAYABLE CLAUSE
IL0017	(1198)	COMMON POLICY CONDITIONS
IL0183	(0808)	NEW YORK CHANGES - FRAUD
IL0185	(0808)	NEW YORK CHANGES - CALCULATION OF PREMIUM
* MSIU05	(1199)	FRAUD TIP LINE
* MU0781	(0701)	NEW YORK INSURANCE IDENTIFICATION CARD
MU2098	(0407)	NY NOTICE TO POLICYHOLDERS - ANTI-THEFT CREDIT
* MU7250	(0698)	COMMERCIAL AUTO DECLARATIONS
* MU7251	(0202)	SCHEDULE OF VEHICLES
* MU7332	(0618)	COMMERCIAL AUTOMOBILE EXPLANATION OF SUM COVERAGE
MU7370	(0717)	COMM AUTO POLICY JACKET
* MU7653	(0717)	COMMON POLICY DECLARATIONS
MU7847	(0701)	NYS ID CARDS IMPORTANT INSURANCE INFO FOR POLICYHOLDERS
* MU7916	(0103)	SUPPLEMENTAL SPOUSAL LIABILITY COVERAGE - NEW YORK
MU8389	(0718)	COMMERCIAL AUTO BROAD FORM ENDORSEMENT

SCHEDULE OF AUTOS AND RELATED COVERAGES / DISCOUNTS

COVERED AUTO NO.	DESCRIPTION YEAR, MAKE, MODEL VEHICLE IDENTIFICATION NUMBER (VIN)	PURCHASED ORIGINAL COST	NEW/ USED	TERRITORY TOWN & STATE WHERE PRINCIPALLY GARAGED
001	1997 PARK TRAILER 13ZRP1622V1007772	10,000 ACV 10,000 ACV		WARRENSBURG NY 067
002	2007 PJTM TRAILER 4P5D6122471092275	10,000 ACV 10,000 ACV		WARRENSBURG NY 067
003	2003 HOME TRAILER 5HABV08163N029280			WARRENSBURG NY 067
004	2002 HAU 16HTS10112P027439	5,000 ACV 5,000 ACV		WARRENSBURG NY 067

CLASSIFICATION									
COVERED AUTO NO.	RADIUS	BUSINESS USE S=SERVICE R=RETAIL C=COMM	SIZE, GVW, GCW, SEATING CAPACITY	AGE GRP	LIAB	PRIMARY FACTOR PHYS DAMAGE	LIAB	SECONDARY FACTOR PHYS. DAMAGE	CLASS CODE
001	0-50			X	.100	.450/.450			068199
002	0-50			X	.100	.450/.450			068199
003	0-50			X	.100				068199
004	0-50			X	.100	.450/.450			068199

COVERED AUTO NO	LIABILITY LIMIT (000)	PREMIUM	PIB LIMIT	PREMIUM	PROPERTY PROTECTION PREMIUM	ADDITIONAL PIB LIMIT	PREMIUM
001	1,000	48.00	*	12.00		*	Included
002	1,000	48.00	*	12.00		*	Included
003	1,000	48.00	*	12.00		*	Included
004	1,000	48.00	*	12.00		*	Included

COVERED AUTO NO	AUTO MED. PAY LIMIT	PREMIUM	UNINSURED MOTORISTS LIMIT (000)	PREMIUM	UNDERINSURED MOTORISTS PREMIUM
001	\$ 5,000		1.00	1,000	Included
002	\$ 5,000		1.00	1,000	Included
003	\$ 5,000		1.00	1,000	Included
004	\$ 5,000		1.00	1,000	Included

COVERED AUTO NO	COMPREHENSIVE † DEDUCTIBLE	PREMIUM	SPECIFIED CAUSE OF LOSS †† DEDUCTIBLE	PREMIUM	COLLISION ††† DEDUCTIBLE	TYPE	PREMIUM
001	500	30.00			500		31.00
002	500	30.00			500		31.00
003							
004	500	23.00			500		18.00

COVERED AUTO NO.	TOWING & LABOR Limit	PREMIUM	OTHER SURCHARGES	MISC PREMIUM	VEHICLE LIABILITY TOTAL	VEHICLE PHYSICAL DAMAGE TOTAL	VEHICLE TOTAL
001			30.00		61.00	61.00	122.00
002			INCLUDED		61.00	61.00	122.00
003			INCLUDED		61.00		61.00
004			INCLUDED		61.00	41.00	102.00

* SEE PERSONAL INJURY PROTECTION SECTION OF THIS SCHEDULE FOR COVERAGES AND LIMITS

† Actual cash value or cost of repair, whichever is less minus the deductible shown above for each covered auto, but no deductible applies to loss by fire or lightning.

†† Actual cash value or cost of repair, whichever is less minus the deductible shown above for each covered auto for loss caused by mischief or vandalism.

††† Actual cash value or cost of repair, whichever is less minus the deductible shown for each covered auto.

SCHEDULE OF AUTOS AND RELATED COVERAGES / DISCOUNTS

COVERED AUTO NO.	DESCRIPTION YEAR, MAKE, MODEL VEHICLE IDENTIFICATION NUMBER (VIN)	PURCHASED ORIGINAL COST	NEW/ USED	TERRITORY TOWN & STATE WHERE PRINCIPALLY GARAGED
005	2019 FORD F250 1FT7X2B64KEE07977	46,315 ACV 46,315 ACV		WARRENSBURG NY 067
006	2008 FORD F350 1FTSX31Y88EB42119	36,440 ACV 36,440 ACV		WARRENSBURG NY 067
007	2011 FORD F350 1FDRF3H63BEA66124	60,000 ACV 60,000 ACV		WARRENSBURG NY 067

COVERED AUTO NO.	RADIUS	BUSINESS USE S=SERVICE R=RETAIL C=COMM	SIZE, GVW, GCW, SEATING CAPACITY	AGE GRP	CLASSIFICATION				
					PRIMARY FACTOR			SECONDARY FACTOR	
					LIAB	PHYS DAMAGE	LIAB	PHYS. DAMAGE	CLASS CODE
005	0-50	C	6,370	A	1.300	1.100/1.100	-0.050	-0.050	003183
006	0-50	C	6,579	X	1.300	1.100/1.100	-0.050	-0.050	003183
007	0-50	C	10,140	X	1.400	.850/.850	-0.050	-0.050	023183

COVERED AUTO NO	LIABILITY		LIMIT	PIP		PROPERTY PROTECTION PREMIUM	ADDITIONAL PIP	
	LIMIT (000)	PREMIUM		PREMIUM			LIMIT	PREMIUM
005	1,000	580.00	*	26.00			*	Included
006	1,000	580.00	*	26.00			*	Included
007	1,000	627.00	*	26.00			*	Included

COVERED AUTO NO	AUTO MED. PAY		LIMIT (000)	UNINSURED MOTORISTS		UNDERINSURED MOTORISTS	
	LIMIT	PREMIUM		PREMIUM		PREMIUM	
005	\$ 5,000		1.00	1,000	33.00		Included
006	\$ 5,000		1.00	1,000	33.00		Included
007	\$ 5,000		1.00	1,000	33.00		Included

COVERED AUTO NO	COMPREHENSIVE †		SPECIFIED CAUSE OF LOSS ††		COLLISION †††		PREMIUM
	DEDUCTIBLE	PREMIUM	DEDUCTIBLE	PREMIUM	DEDUCTIBLE	TYPE	
005	500	221.00			500		355.00
006	500	119.00			500		134.00
007	500	91.00			500		144.00

COVERED AUTO NO.	TOWING & LABOR		OTHER SURCHARGES	MISC PREMIUM	VEHICLE LIABILITY TOTAL	VEHICLE PHYSICAL DAMAGE TOTAL	VEHICLE TOTAL
	Limit	Premium					
005			INCLUDED		640.00	576.00	1,216.00
006			INCLUDED		640.00	253.00	893.00
007			INCLUDED		687.00	235.00	922.00

SCHEDULE OF AUTOS AND RELATED COVERAGES / DISCOUNTS**NEW YORK MANDATORY PERSONAL INJURY PROTECTION (CA 22 32)**

Basic Economic Loss	Maximum Monthly Work Loss	Other Necessary Expenses (per day)	Death Benefit
\$ 50,000	\$ 2,000	\$ 25	\$ 2,000
Applicable to Auto(s): 001,002,003,004,005,006,007			

NEW YORK ADDED PERSONAL INJURY PROTECTION (CA 22 33)

Total Added Personal Injury Protection Limits	Maximum Monthly Work Loss	Other Necessary Expenses (per day)
\$ 50,000	\$ 1,000	\$ 25
Applicable to Auto(s): 001,002,003,004,005,006,007		

NEW YORK OPTIONAL BASIC ECONOMIC LOSS COVERAGE \$ 25,000 (CA 22 60)**AGGREGATE NO-FAULT BENEFITS AVAILABLE \$ 125,000****FULL WINDOW GLASS COVERAGE**Applicable to Auto(s)
005 006

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES IN BUSINESS AUTO AND MOTOR CARRIER COVERAGE FORMS

For a covered "auto" licensed or principally garaged in New York, this endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM
MOTOR CARRIER COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

A. Changes In Covered Autos Liability Coverage

1. The third paragraph of **A. Coverage** is replaced by the following:

We have the right and duty to defend any "insured" against a "suit" asking for such damages or a "covered pollution cost or expense", even if the allegations of the "suit" are groundless, false or fraudulent. However, we have no duty to defend any "insured" against a "suit" seeking damages for "bodily injury" or "property damage" or a "covered pollution cost or expense" to which this insurance does not apply. We may investigate and settle any claim or "suit" as we consider appropriate. Our duty to defend or settle ends when the Covered "Autos" Liability Coverage Limit of Insurance has been exhausted by payment of judgments or settlements.

2. Who Is An Insured does not include anyone loading or unloading a covered "auto" except you, your "employees", a lessee or borrower or any of their "employees".

3. **Supplementary Payments** is amended as follows:

- a. Paragraph **(5)** is replaced by the following:

(5) All costs taxed against the "insured" in any "suit" against the "insured" we defend.

- b. The following paragraphs are added:

(7) All expenses incurred by an "insured" for first aid to others at the time of an "accident".

(8) The cost of appeal bonds.

4. Paragraph **b. Out-of-state Coverage Extensions** in the Business Auto and Motor Carrier Coverage Forms is replaced by the following:

- b. While a covered "auto" is used or operated in any other state or Canadian province, we will provide at least the minimum amount and kind of coverage which is required in such cases under the laws of such jurisdiction.

5. **Exclusions** is changed as follows:

- a. The **Employee Indemnification And Employer's Liability** Exclusion is replaced by the following:

Employee Indemnification And Employer's Liability

This insurance does not apply to:

"Bodily injury" to an "employee" of the "insured" arising out of and in the course of:

- (1)** Employment by the "insured"; or
- (2)** Performing the duties related to the conduct of the "insured's" business.

But this exclusion does not apply to "bodily injury" to domestic "employees" not entitled to workers' compensation benefits or to liability assumed by the "insured" under an "insured contract". For the purposes of the Coverage Form, a domestic "employee" is a person engaged in household or domestic work performed principally in connection with a residence premises.

- b. The **Fellow Employee** Exclusion is replaced by the following:

Fellow Employee

This insurance does not apply to:

"Bodily injury" to any fellow "employee" of the "insured" arising out of and in the course of the fellow "employee's" employment or while performing duties related to the conduct of your business.

However, this exclusion only applies if the fellow "employee" is entitled to benefits under any of the following: workers' compensation, unemployment compensation or disability benefits law, or any similar law.

- c. The **Handling Of Property** Exclusion does not apply.
- d. The **Movement Of Property By Mechanical Device** Exclusion does not apply.
- e. The **Operations** Exclusion does not apply.
- f. The **Completed Operations** Exclusion does not apply.
- g. The **Pollution** Exclusion does not apply.
- h. The **War** Exclusion is replaced by the following:

War

"Bodily injury" or "property damage" caused by war, whether or not declared, civil war, insurrection, rebellion or revolution, or any act or condition incident to any of the foregoing.

- i. The **Racing** Exclusion does not apply.
- j. The following exclusion is added:

Spousal Liability

"Bodily injury" to or "property damage" of the spouse of an "insured". However, we will pay all sums an "insured" legally must pay if named as a third-party defendant in a legal action commenced by his or her spouse against another party.

6. If the Limit Of Insurance for Covered Autos Liability Coverage shown in the Declarations is equal to or greater than \$160,000, the **Limit Of Insurance** provision is changed by the following:

Limit Of Insurance applies except that we will apply the Limit Of Insurance for Covered Autos Liability Coverage shown in the Declarations to first provide the separate limits required by the New York Motor Vehicle Safety Responsibility Act for:

- a. "Bodily injury" not resulting in death of any one person caused by any one "accident";
- b. "Bodily injury" not resulting in death of two or more persons caused by any one "accident";
- c. "Bodily injury" resulting in death of any one person caused by any one "accident";
- d. "Bodily injury" resulting in death of two or more persons caused by any one "accident"; or
- e. "Property damage" in any one "accident".

This provision will not change our total Limit of Insurance.

7. If the Limit Of Insurance for Covered Autos Liability Coverage shown in the Declarations is less than \$160,000, the **Limit Of Insurance** provision is replaced by the following:

Regardless of the number of covered "autos", "insureds", premiums paid, claims made or vehicles involved in the "accident", the most we will pay for the total of all damages and "covered pollution cost or expense" combined, resulting from any one "accident", is the Limit Of Insurance for Covered Autos Liability Coverage shown in the Declarations, except for those damages for "bodily injury" resulting in death. We will apply the Limit Of Insurance for Covered Autos Liability Coverage shown in the Declarations to first provide the separate limits required by the New York Motor Vehicle Safety Responsibility Act as follows:

- a. "Bodily injury" not resulting in death of any one person caused by any one "accident";
- b. "Bodily injury" not resulting in death of two or more persons caused by any one "accident"; or
- c. "Property damage" in any one "accident".

This provision will not change our total Limit of Insurance.

All "bodily injury" and "property damage" resulting from continuous or repeated exposure to substantially the same conditions will be considered as resulting from one "accident".

In addition, our Limit of Insurance for "bodily injury" resulting in death is as follows:

- a. Up to \$50,000 for "bodily injury" resulting in death of any one person caused by any one "accident"; and
- b. Up to \$100,000 for "bodily injury" resulting in death of two or more persons caused by any one "accident", subject to a \$50,000 maximum for any one person.

If the Limit Of Insurance for Covered Autos Liability Coverage shown in the Declarations is not exhausted by payment of damages for:

- a. "Bodily injury" not resulting in death;
- b. "Property damage"; or
- c. "Covered pollution cost or expense";

any remaining amounts will be used to pay damages for "bodily injury" resulting in death, to the extent the Limit Of Insurance for Covered Autos Liability Coverage shown in the Declarations is not increased.

8. If forming part of the Policy, the Nuclear Energy Liability Exclusion (Broad Form) Endorsement does not apply to the Commercial Auto Coverage Part.

B. Changes In Trailer Interchange Coverage

Paragraph **A.2. of Section III – Trailer Interchange Coverage** in the Motor Carrier Coverage Form is replaced by the following:

2. We have the right and duty to defend any "insured" against a "suit" asking for these damages, even if the allegations of the "suit" are groundless, false or fraudulent. However, we have no duty to defend any "insured" against a "suit" seeking damages for any "loss" to which this insurance does not apply. We may investigate and settle any claim or "suit" as we consider appropriate. Our duty to defend or settle ends when the Limit of Insurance for that coverage has been exhausted by payment of judgments or settlements.

C. Changes In Physical Damage Coverage

1. The **Owned Autos You Acquire After The Policy Begins** provision of Section I – **Covered Autos** is replaced by the following:

Owned Autos You Acquire After The Policy Begins

- a. If Symbols **1, 2, 3, 4, 5, 6** or **19** are entered next to a coverage in Item Two of the Declarations, then you have coverage for "autos" that you acquire of the type described for the remainder of the policy period.
- b. But, if Symbol **7** is entered next to a coverage in Item Two of the Declarations, an "auto" you acquire will be a covered "auto" for that coverage only if:
 - (1) We already cover all "autos" that you own for that coverage or it replaces an "auto" you previously owned that had that coverage; and
 - (2) You tell us within 30 days after you acquire it that you want us to cover it for that coverage.

- c. Notwithstanding the provisions of Paragraphs **a.** and **b.**, during the term of the Coverage Part, Physical Damage Coverage for an additional or replacement private passenger "auto" shall not become effective until you notify us and request coverage for the "auto".

However, if you replace a private passenger "auto" currently insured with us for a continuous period of at least 12 months, we will provide the same coverage which applied to the replaced "auto", without a coverage request, for five calendar days beginning on the date you acquired the replacement "auto". After five calendar days, coverage will not apply until you request coverage for the "auto".

2. The **War Or Military Action** Exclusion is replaced by the following:

War Or Military Action

War, whether or not declared, civil war, insurrection, rebellion or revolution, or any act or condition incident to any of the foregoing.

3. **Deductible** is replaced by the following:

Deductible

For each covered "auto", our obligation to pay for, return or replace damaged or stolen property will be reduced by the applicable deductible shown in the Declarations.

4. The following provisions are added to **Physical Damage Coverage** and apply in place of any conflicting policy provisions:

a. Mandatory Inspection For Physical Damage Coverage

- (1) We have the right to inspect any private passenger "auto", including a non-owned "auto", insured or intended to be insured under this Coverage Part before physical damage coverage shall become effective, except to the extent that this right is prescribed and limited by New York State Department of Financial Services' Insurance Regulation No. 79 (11 NYCRR 67) or Section 3411 of the New York Insurance Law.
- (2) When an inspection is required by us, you must cooperate and make the "auto" available for the inspection.

b. "Auto" Repairs Under Physical Damage Coverage

Payment of a physical damage "loss" shall not be conditioned upon the repair of the "auto". We may not require that repairs be made by a particular repair shop or concern.

c. Recovery Of Stolen Or Abandoned "Autos"

If a private passenger "auto" insured under this Coverage Part for physical damage coverage is stolen or abandoned, we or our authorized representative shall, when notified of the location of the "auto", have the right to take custody of the "auto" for safekeeping.

D. Changes In Conditions

1. Paragraphs **a.** and **b.(2)** of the **Duties In The Event Of Accident, Claim, Suit Or Loss** Condition in the Business Auto and Motor Carrier Coverage Forms are replaced by the following:

We have no duty to provide coverage under this Policy if the failure to comply with the following duties is prejudicial to us:

- a.** In the event of "accident", claim, "suit" or "loss", you or someone on your behalf must give us or our authorized representative notice as soon as reasonably possible of the "accident" or "loss". Include:
 - (1) How, when and where the "accident" or "loss" occurred;
 - (2) The "insured's" name and address; and
 - (3) To the extent possible, the names and addresses of any injured persons and witnesses.

Written notice by or on behalf of the injured person or any other claimant to our authorized representative shall be deemed notice to us.

- b.** Additionally, you and any other involved "insured" must:
 - (2) Send us copies of any request, demand, order, notice, summons or legal paper received concerning the claim or "suit" as soon as reasonably possible.

2. The **Legal Action Against Us** Condition in the Business Auto and Motor Carrier Coverage Forms is replaced by the following:

Legal Action Against Us

- a.** Except as provided in Paragraph **b.**, no one may bring a legal action against us until:
 - (1) There has been full compliance with all of the terms of the Coverage Form; and
 - (2) Under Covered Autos Liability Coverage, we, by written agreement with the "insured" and the claimant, agree that the "insured" has an obligation to pay or until the amount of that obligation has finally been determined by judgment after trial. No person or organization has any right under this Policy to bring us into any action to determine the "insured's" liability.

- b. With respect to "bodily injury" claims, if we deny coverage or do not admit liability because an "insured" or the injured person, someone acting for the injured person or other claimant fails to give us written notice as soon as practicable, then the injured person, someone acting for the injured person or other claimant may bring an action against us, provided the sole question is whether the denial of coverage or nonadmission of liability is based on the failure to provide timely notice.

However, the injured person, someone acting for the injured person or other claimant may not bring an action if within 60 days after we deny coverage or do not admit liability, we or an "insured":

- (1) Brings an action to declare the rights of the parties under the Policy; and
- (2) Names the injured person, someone acting for the injured person or other claimant as a party to the action.

3. Paragraph **d.** of the **Other Insurance** Condition in the Business Auto Coverage Form and Paragraph **h. Other Insurance – Primary And Excess Insurance Provisions** in the Motor Carrier Coverage Form are replaced by the following:

When this Coverage Form and any valid and collectible insurance under any other Coverage Form or policy covers on the same basis, either excess or primary, we will pay only our share. Our share is the proportion that the Limit of Insurance of our Coverage Form bears to the total of the limits of all the Coverage Forms and policies covering on the same basis.

4. The following provision is added and supersedes any provision to the contrary:

Failure to give notice to us as soon as practicable, as required under this Coverage Part, shall not invalidate any claim made by the "insured", injured person or any other claimant, unless the failure to provide such timely notice has prejudiced us. However, no claim made by the "insured", injured person or other claimant will be invalidated if it shall be shown not to have been reasonably possible to give such timely notice and that notice was given as soon as was reasonably possible thereafter.

5. The **Loss Payment – Physical Damage Coverages** Condition is replaced by the following:

Loss Payment – Physical Damage Coverages

At our option, we may:

- a. Pay for or replace damaged or stolen property; or
- b. Return the stolen or damaged property, at our expense. We will pay for any damage that results to the "auto" from the "loss".

If we pay for the "loss", our payment will include the applicable sales tax for the damaged or stolen property.

6. The **Two Or More Coverage Forms Or Policies Issued By Us** Condition in the Business Auto and Motor Carrier Coverage Forms is changed as follows:

This condition does not apply to liability coverage.

7. The **Premium Audit** Condition is amended by the addition of the following:

An audit to determine the final premium due or to be refunded will be completed within 180 days after the expiration date of the Policy or the anniversary date, if this is a continuous policy or a policy written for a term longer than one year. But the audit may be waived if:

- a. The total annual premium attributable to the auditable exposure base is not reasonably expected to exceed \$1,500; or
- b. The Policy requires notification to the insurer with specific identification of any additional exposure units (e.g., autos) for which coverage is requested.
- c. Except as provided in Paragraphs **a.** and **b.** above, the **Examination Of Your Books And Records** Common Policy Condition continues to apply.

E. Changes In Definitions

The **Definitions** section in the Business Auto and Motor Carrier Coverage Forms is changed as follows:

1. The "covered pollution cost or expense" definition is replaced by the following:

"Covered pollution cost or expense" means any cost or expense arising out of:

- a. Any request, demand, order or statutory or regulatory requirement; or
- b. Any claim or "suit" by or on behalf of a governmental authority demanding;

that the "insured" or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants".

2. The "insured contract" definition is replaced by the following:

"Insured contract" means:

- a. A lease of premises;
- b. A sidetrack agreement;
- c. An easement or license agreement in connection with vehicle or pedestrian private railroad crossings at grade;
- d. Any other easement agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;
- e. An indemnification of a municipality as required by ordinance, except in connection with work for a municipality;
- f. That part of any contract or agreement entered into, as part of your business, by you or any of your employees, pertaining to the rental or lease of any "auto"; or
- g. That part of any other contract or agreement pertaining to your business under which you assume the tort liability of another to pay damages because of "bodily injury" or "property damage" to a third person or organization, if the contract or agreement is made prior to the "bodily injury" or "property damage". Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.

An "insured contract" does not include that part of any contract or agreement:

- a. That pertains to the loan, lease or rental of an "auto" to you or any of your employees, if the "auto" is loaned, leased or rented with a driver;
- b. That holds a person or organization engaged in the business of transporting property by "auto" for hire harmless for your use of a covered "auto" over a route or territory that person or organization is authorized to serve by public authority; or
- c. Under which the "insured" assumes liability for injury or damage caused by the dumping, discharge or escape of:
 - (1) Irritants, pollutants or contaminants that are, or that are contained in, any property that is:
 - (a) Being moved from the place where such property or pollutants are accepted by the "insured" for movement into or onto the covered "auto";
 - (b) Being transported or towed by the covered "auto";
 - (c) Being moved from the covered "auto" to the place where such property or pollutants are finally delivered, disposed of or abandoned by the "insured";
 - (d) Otherwise in the course of transit; or
 - (e) Being stored, disposed of, treated or processed in or upon the covered "auto" other than fuels, lubricants, fluids, exhaust gases or other similar pollutants that are needed for, or result from, the normal electrical, hydraulic or mechanical functioning of the covered "auto" or its parts.
 - (2) Irritants, pollutants or contaminants not described in Paragraph (1) above unless:
 - (a) The pollutants or any property in which the pollutants are contained is upset, overturned or damaged as a result of the maintenance or use of the covered "auto"; and

- (b) The discharge, dispersal, release or escape of the pollutants is caused directly by such upset, overturn or damage.

3. The "mobile equipment" definition is replaced by the following:

"Mobile equipment" means any of the following types of land vehicles, including any attached machinery or equipment:

- a. Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;
- b. Vehicles maintained for use solely on or next to premises you own or rent;
- c. Vehicles that travel on crawler treads;
- d. Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:
 - (1) Power cranes, shovels, loaders, diggers or drills; or
 - (2) Road construction or resurfacing equipment such as graders, scrapers or rollers.
- e. Vehicles not described in Paragraph a., b., c. or d. above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:
 - (1) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well-servicing equipment; or
 - (2) Cherry pickers and similar devices used to raise or lower workers.
- f. Vehicles not described in Paragraph a., b., c. or d. above maintained primarily for purposes other than the transportation of persons or cargo. However, self-propelled vehicles with the following types of permanently attached equipment are not "mobile equipment" but will be considered "autos":
 - (1) Equipment designed primarily for:
 - (a) Snow removal;
 - (b) Road maintenance, but not construction or resurfacing; or
 - (c) Street cleaning;
 - (2) Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and

- (3) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting or well-servicing equipment.

"Mobile equipment" does not include land vehicles that are subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged. Land vehicles subject to a compulsory or financial responsibility law or other motor vehicle insurance law are considered "autos".

However, the operation of:

- a. Equipment described in Paragraphs f.(2) and f.(3) above; or
- b. Machinery or equipment that is on, attached to, or part of, a land vehicle that would qualify under the definition of "mobile equipment" if it were not subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged;

is considered operation of "mobile equipment" and not operation of an "auto".

F. Changes In Forms And Endorsements

- 1. All references to Underinsured Motorists Coverage shall mean Supplementary Uninsured/Underinsured Motorists Coverage.
- 2. If the Garagekeepers Coverage endorsement or the Garagekeepers Coverage – Customers' Sound-receiving Equipment endorsement is attached, then:
 - a. Paragraph B.2. is replaced by the following:
 - 2. We will have the right and duty to defend any "insured" against a "suit" asking for these damages, even if the allegations of the "suit" are groundless, false or fraudulent. However, we have no duty to defend any "insured" against a "suit" seeking damages for "loss" to which this insurance does not apply. We may investigate and settle any claim or "suit" as we consider appropriate. Our duty to defend or settle ends for a coverage when the Limit of Insurance for that coverage has been exhausted by payment of judgments or settlements.

- b. Exclusion **3.** is replaced by the following:
 - 3. We will not pay for "loss" caused by war, whether or not declared, civil war, insurrection, rebellion or revolution, or any act or condition incident to any of the foregoing.
- 3. If the Auto Medical Payments Coverage endorsement is attached, then Exclusion **C.6.** is replaced by the following:
 - 6. "Bodily injury" caused by war, whether or not declared, civil war, insurrection, rebellion or revolution, or any act or condition incident to any of the foregoing.
- 4. If the Single Interest Automobile Physical Damage Insurance Policy is attached, the **War** Exclusion is replaced by the following:

This insurance does not apply to "loss" caused by war, whether or not declared, civil war, insurrection, rebellion or revolution, or any act or condition incident to any of the foregoing.
- 5. If the Stated Amount Insurance endorsement is attached, then Paragraph **C.2.** of that endorsement does not apply.
- 6. If the Trailer Interchange Coverage endorsement is attached, then Paragraph **A.2.** is replaced by the following:
 - 2. We have the right and duty to defend any "insured" against a "suit" asking for these damages, even if the allegations of the "suit" are groundless, false or fraudulent. However, we have no duty to defend any "insured" against a "suit" seeking damages for any "loss" to which this insurance does not apply. We may investigate and settle any claim or "suit" as we consider appropriate. Our duty to defend or settle ends for a coverage when the Limit of Insurance for that coverage has been exhausted by payment of judgments or settlements.
- 7. If the Motor Carrier Endorsement is attached, then Paragraph **B.1.c.** is replaced by the following:
 - c. We have the right and duty to defend any "insured" against a "suit" asking for these damages, even if the allegations of the "suit" are groundless, false or fraudulent. However, we have no duty to defend any "insured" against a "suit" seeking damages for any "loss" to which this insurance does not apply. We may investigate and settle any claim or "suit" as we consider appropriate. Our duty to defend or settle ends for a coverage when the Limit of Insurance for that coverage has been exhausted by payment of judgments or settlements.

COMMERCIAL AUTOMOBILE EXPLANATION OF SUM COVERAGE – NEW YORK

New York State Regulation 35-D requires that we offer you Supplementary Uninsured / Underinsured Motorists Coverage (SUM).

New York Law permits you to make certain decisions regarding Uninsured Motorists Coverage and Supplementary Uninsured/Underinsured (SUM) Motorists coverage. This document describes these coverages and the options available.

You should read this document carefully and contact your agent if you have any questions regarding Uninsured Motorists Coverage and Supplementary Uninsured/Underinsured (SUM) Motorists Coverage and your options with respect to these coverages.

This document includes general descriptions of coverage. However, no coverage is provided by this document. You should read your policy and review your Declarations Page(s) and/or Schedule(s) for complete information on the coverages you are provided.

BASICS OF SUM COVERAGE

- (A)** SUM provides additional insurance coverage for bodily injury, including death resulting therefrom, sustained by an insured, as a result of an accident involving a negligent owner or operator of another motor vehicle who:
 - (1)** may have no insurance whatsoever; or
 - (2)** even if insured, is only insured for third-party bodily injury coverage at relatively low liability limits, in comparison to the policyholder's own liability limits for bodily injury sustained by third-parties.
- (B)** An insurer shall not offer SUM coverage in an amount exceeding the third party liability coverage limits purchased by the policyholder. The policy shall provide coverage for any insured under the policy for:
 - (1)** bodily injury to such person, up to the limit of the SUM coverage purchased; and
 - (2)** receive from the policyholder's own insurer payment for bodily injury sustained due to the negligence of the other motor vehicle's owner or operator.
- (C)** The maximum amount payable under the SUM coverage shall be the policy's SUM limit reduced and thus offset by any motor vehicle bodily injury liability insurance policy or bond payments received from, or on behalf of, any negligent party involved in the accident.

THE DIFFERENCE BETWEEN STATUTORY UNINSURED MOTORISTS COVERAGE AND SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS COVERAGE

The following is an advisory explanation of the notable differences between Statutory Uninsured Motorists Coverage and Supplementary Uninsured/Underinsured Motorists Coverage and is not intended to substitute for a complete review of both coverages. If there is any conflict between the policy and this advisory explanation, the provisions of the policy apply.

STATUTORY UNINSURED MOTORISTS COVERAGE

Statutory Uninsured Motorist Coverage provides insurance protection to an insured for damages which the insured or the insured's legal representative is legally entitled to recover from the owner or operator of an uninsured motor vehicle because of bodily injury caused by an automobile accident. Also included are damages due to bodily injury that result from an automobile accident with a hit-and-run vehicle whose owner or operator cannot be identified.

If someone is hurt by this type of motorist and doesn't die, your Statutory Uninsured Motorists Coverage can pay up to \$25,000 for each person injured, with \$50,000 maximum for each accident. If bodily injury results in death, your Statutory Uninsured Motorists Coverage can pay up to \$50,000 for each person who dies as a result of bodily injury, with \$100,000 maximum for each accident resulting in death to two or more people. These are the **only** available limits under Statutory Uninsured Motorists Coverage.

Statutory Uninsured Motorists Coverage applies only to accidents which occur within the State of New York.

SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS COVERAGE

Supplementary Uninsured/Underinsured Motorist (SUM) Coverage applies to accidents that occur in New York State and throughout the United States, its territories or possessions, or Canada.

SUM Coverage also protects you, a family member who lives with you, or someone in an auto you are operating, if there is an accident with an auto that has bodily injury liability insurance coverage, but its bodily injury liability insurance is less than the bodily injury liability insurance that you have on your own auto. This kind of insurance is called "Underinsured Motorists Coverage," and it is included under SUM Coverage.

If you decide to buy SUM Coverage, you may buy this coverage at limits higher than the Statutory Uninsured Motorists Coverage limits. However, the SUM Coverage cannot be purchased in an amount exceeding the third party liability coverage limits purchased.

If you have an accident, your SUM Coverage limit will be reduced by any liability insurance or bond payments made by a negligent motorist.

AVAILABLE UM/SUM LIMITS

In accordance with New York Insurance Department Regulation No. 35-D, the following UM/SUM limits are available provided that the SUM limits selected do not exceed the bodily injury liability limits you have selected:

1. STATUTORY UM COVERAGE LIMITS OF \$25,000/\$50,000

\$25,000 per person and \$50,000 per accident, regardless of the number of persons involved in any given accident.

2. SUM COVERAGE WITH BASIC LIMITS OF \$25,000/\$50,000 EXTENDED OUT-OF-STATE

\$25,000 per person, extended out-of-state, and \$50,000 per accident, regardless of the number of persons involved in any given accident, extended out-of-state.

3. SUM COVERAGE WITH LIMITS HIGHER THAN \$25,000/\$50,000 EXTENDED OUT-OF-STATE

In addition to the \$25,000/\$50,000 limits shown in 2. above, higher limits are available in the following amounts, extended out-of-state:

SINGLE LIMITS:

\$60,000	\$200,000	\$400,000
\$100,000	\$250,000	\$500,000
\$125,000	\$300,000	
\$150,000	\$350,000	

For other limits, contact your agent.

EXAMPLES OF HOW SUM COVERAGE APPLIES

The following examples (using the per person limits) illustrate the proper application of SUM coverage:

(1) Example One:

Insured's Bodily Injury Damages	\$300,000
Insured's Liability Limit	\$500,000
Insured's SUM Limit	\$250,000
Other Motor Vehicle Liability Limit	\$25,000

RESULT: In this example, the insured has purchased the maximum amount of SUM coverage that must be offered by the insurer, provided that the insured has purchased bodily injury liability limits of at least \$250,000. Insured recovers \$25,000 from the negligent owner or operator of the other motor vehicle, and \$225,000 (\$250,000 minus \$25,000) under the SUM coverage, for a total recovery of \$250,000.

In the event that the negligent owner or operator of the other motor vehicle had no liability insurance at all, the insured would collect \$250,000 in SUM coverage from the insured's own insurer. However, if the owner or operator of the other motor vehicle was not negligent, then the insured would receive no SUM payments.

(2) Example Two:

Insured's Bodily Injury Damages	\$100,000
Insured's Liability Limit	\$25,000
Insured's SUM Limit	\$25,000
Other Motor Vehicle Liability Limit	\$25,000

RESULT: Insured recovers \$25,000 from the negligent owner or operator of the other motor vehicle. The insured receives nothing under the SUM coverage, which equals the mandatory UM coverage, since the liability limits on the other owner or operator's motor vehicle were not lower than the liability insurance limits on the insured's motor vehicle. If the insured's liability and SUM limits were both \$50,000, then the insured would collect another \$25,000 in SUM coverage from the insured's own insurer.

(3) Example Three:

Insured's Bodily Injury Damages	\$60,000
Insured's Liability Limit	\$100,000
Insured's SUM Limit	\$100,000
Other Motor Vehicle Liability Limit	\$50,000

RESULT: Insured recovers \$50,000 from the negligent owner or operator of the other motor vehicle and \$10,000 under the SUM coverage, which is the difference between the amount of the insured's SUM coverage and the liability coverage available from the other motor vehicle owner or operator, limited by the amount of the insured's bodily injury damages.

(4) Example Four:

Insured's Bodily Injury Damages	\$150,000
Insured's Liability Limit	\$100,000
Insured's SUM Limit	\$100,000
Other Motor Vehicle Liability Limit	\$25,000

RESULT: If the insured and the owner or operator of the other motor vehicle were each 50 percent at fault for the accident, then the insured's total recovery would be \$75,000, in light of comparative negligence of the parties involved in the accident. The insured would recover \$25,000 from the negligent owner or operator of the other motor vehicle and \$50,000 under the SUM coverage.

On the other hand, if the owner or operator of the other motor vehicle was totally at fault for the accident, then the insured would recover \$25,000 from the negligent motor vehicle owner or operator, and would then receive \$75,000 in SUM coverage from the insured's own insurer. Had the insured purchased liability and SUM limits of \$150,000 or more, the SUM recovery would then be \$125,000.

(5) Example Five:

Insured's Bodily Injury Damages	\$25,000
Passenger's Bodily Injury Damages	\$25,000
Another Passenger's Damages that resulted in death	\$50,000
Insured's Combined Single Liability (CSL) Limit	\$75,000
Insured's CSL SUM Limit	\$75,000
Other Motor Vehicle Liability Limit	Uninsured (i.e. no coverage)

RESULT: Since the other motor vehicle was uninsured, the full \$75,000 CSL SUM limit is available for all insured persons from this accident under the policy. However, since the accident involves insured persons who were both injured and killed, the mandatory UM limits of \$25,000 per person and \$50,000 per accident for injured persons and \$50,000 per person and \$100,000 per accident for persons killed in the accident are available. Therefore, the insured and first passenger each recover \$25,000 and the second passenger's estate recovers the full \$50,000 under the SUM coverage.

If the insured's CSL and CSL SUM limit were each \$300,000 and the insured's damages amounted to \$200,000 then all insured persons would be covered under the SUM coverage as the total damages (\$200,000 + \$25,000 + \$50,000 = \$275,000) are less than the \$300,000 CSL SUM limit.

IMPORTANT

SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS COVERAGE (SUM COVERAGE) PROVIDES INSURANCE PROTECTION FOR ANY PERSON INCLUDED AS INSURED UNDER YOUR POLICY IF HE OR SHE IS INJURED IN AN ACCIDENT INVOLVING ANOTHER MOTOR VEHICLE WHOSE OWNER OR OPERATOR WAS NEGLIGENT BUT WHO HAS EITHER NO BODILY INJURY OR LIABILITY INSURANCE, OR LESS THAN THE INSURANCE YOU CARRY. SUM COVERAGE IS AVAILABLE UNDER YOUR POLICY UNLESS YOU SIGN A WAIVER DECLINING THE COVERAGE. YOU ARE URGED TO CAREFULLY CONSIDER THIS DECISION.

If you decide you do not want Supplementary Uninsured/Underinsured Motorist Coverage, you must reject the coverage in writing. Contact your insurance agent for more information.

You've Been Robbed

What are you going to do about it?

**We're In This
Together.**

**Together We
Can Stop It.**



**Join The Fight Against
Insurance Fraud**

1-800-401-6695

**The Merchants'
Fraud Tip Line**

Don't Be A Victim

Right now, there is a criminal on the loose. You may be his next victim. He doesn't know you and he doesn't care. But in the end, he will cost you hundreds of dollars.

We are his other victim. He knows us because he bought an insurance policy from us, and he's out for all he can get.

His crime? Insurance Fraud.

When a person commits fraud against Merchants Insurance Group, they rob each and every policyholder of their premium dollars.

Insurance crime costs the industry more than \$17 billion annually, making it the number two crime in America next to tax fraud. What's even more alarming however, is that the problem is getting worse. Over the past few years the number of documented cases of insurance fraud has increased dramatically.

Merchants is committed to stopping these criminals. That's why we have established the Special Investigation Unit, a team of highly trained experts who combat insurance fraud. You can be part of that team by providing any information about people who have committed fraud, or intend to commit fraud against Merchants. Just call the Merchants Insurance Group Fraud Tip-Line at 1-800-401-6695, 24 hours a day.

*Every crime has a victim.
You don't have to be one.*

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